

But Section 3051 of the Civil Code is a statute about liens, and is thus inapposite: Defendant does not possess a lien on any property of Plaintiff.

Thus, the Demurrer to the Second Cause of Action with respect to Defendant Atwater is sustained.

Further, the court denies Plaintiff's request for leave to amend the second cause of action, yet again. Given the analysis above, the court finds that, in all probability, amendment would be futile.

Disposition

Defendant's Demurrer to the second cause of action is sustained.

Plaintiff's request for leave to amend with respect to Defendant Atwater is denied.

Defendant to file order.

Plaintiff to file amended complaint, only reflecting the first cause of action, within 10 days of this order.

11. 9:00 AM CASE NUMBER: L25-05676

CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER

***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF SECOND AMENDED COMPLAINT**

FILED BY: ATWATER, STEPHEN W

TENTATIVE RULING:

On 2/3/26, this court sustained, in part, a demurrer by the Defense to the First Amended Complaint ("FAC") of the Plaintiff. The ruling ("2/3 Ruling") overruled the demurrer to the claim of professional negligence, but allowed Plaintiff leave to amend only the cause of action with respect to breach of contract. The only defendant in the FAC was Atwater.

Subsequently, on 2/13/26, Plaintiff filed a Second Amended Complaint ("SAC"), in which she added Breach of Contract as a cause of action, but also added the defendants VCA Animal Hospitals, VCA Inc., MARS PETCARE US, Inc, and DOES 1 through 10.

Defendant filed a timely Motion to Strike. Plaintiff filed a response, and Defendant filed a Reply.

Background

The following is a brief synopsis of the allegations in the SAC.

Plaintiff brought her cat, Chloe, to the VCA offices for treatment, upon the

recommendation of Chloe's primary, or referring, veterinarian. Defendant Atwater, a veterinarian employed by VCA, attended to Chloe and, after some testing, offered a diagnosis of Small Cell Lymphoma, a more treatable form of cancer, to Plaintiff. Defendant Atwater also recommended a course of treatment designed for this type of cancer.

Several weeks later, Chloe died. The autopsy concluded that kidney failure, due to Large Cell Lymphoma as well as an enlarged kidney, was the cause of death.

After this revelation, Plaintiff requested medical records from VCA and learned that testing results indicated that Chloe had two forms of cancer, Large Cell Lymphoma in addition to Small Cell Lymphoma. The former is more aggressive. Both of these diagnoses were apparent to Defendant Atwater in the testing results prior to his communications with Plaintiff, yet Defendant Atwater never disclosed the Large Cell Lymphoma to Plaintiff.

In addition, although Defendant Atwater verbally provided a diagnosis of only Small Cell Lymphoma to Plaintiff, this diagnosis was absent in the records from VCA. This apparently conflicted with the records from the referring veterinarian, which reflected communications with Defendant Atwater in which he diagnosed Chloe with Small Cell Lymphoma.

Defendant Atwater later sent to Plaintiff a condolence card in which he wrote that Chloe could have benefitted from more aggressive treatment, but that he understood Plaintiff's decision, which apparently suggested that Plaintiff had chosen to only treat Chloe for Small Cell Lymphoma.

Plaintiff also alleges that, after surgery for Small Cell Lymphoma, Chloe "was prescribed" the incorrect dosage of a pain medication. When Plaintiff raised concerns about the dosage, an employee of VCA, Ms. Shuttlesworth, who acted in the capacity of Doctor's Assistant Lead, assured her that the indicated dosage was fine, and there was no risk from a higher dosage. The dosage, which was apparently much higher than normal, contributed to Chloe's kidney failure and, ultimately, her death.

Plaintiff seeks compensatory and punitive damages for Chloe; the replacement or "special" value of Chloe to Plaintiff; and the cost of treatment that Chloe did not receive.

Analysis

The Scope Of Motion To Strike In Limited Civil Matters

With some exceptions, a plaintiff must secure leave from the court to amend a complaint. *Sections 472 and 473 of the CCP*. “It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.” *Cnty. Water Coal. v. Santa Cruz Cnty. Loc. Agency Formation Com.* (2011) 200 Cal. App. 4th 1317, 1329, as modified on denial of reh’g (Dec. 9, 2011) (citation omitted) (striking cause of action “‘not drawn in conformity with...an order of the court’” and citing Code of Civil Procedure § 436(b)).

Though, in a limited civil matter, “Motions to strike are allowed only on the ground that the damages or relief sought are not supported by the allegations of the complaint.” *CCP 92(d)*.

In the instant matter, a Motion to Strike is an improper remedy to address the claim that Plaintiff’s addition of new defendants in the SAC are time-barred. That claim, in a limited civil setting, is properly addressed in response to a Motion to Amend, or a Demurrer.

However, Plaintiff has clearly gone beyond the scope of the 2/3 Ruling. The court did not permit Plaintiff to add defendants to the SAC.

Whether Relief Is Supported By Factual Allegations

Under Civil Code § 3355, a party can only recover for the peculiar value of property as related to the unique economic value. “Peculiar value under Civil Code section 3355 refers to a property’s unique economic value, not its sentimental or emotional value.” *McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1518. The law considers animals to be property, with their value determined in the same manner as other property. See *Scharer v. San Luis Rey Equine Hospital, Inc.* (2012) 204 Cal.App.4th 421, 427-428 (citations omitted). Plaintiff seeks damages for the “special value” of Chloe.

Civil Code § 3340 provides that “[f]or wrongful injuries to animals being subjects of property, committed willfully or by gross negligence, in disregard of humanity, exemplary damages may be given.” Courts, however, have awarded punitive damages for intentional injury to a pet. For example, a neighbor shooting a pet cat with a pellet gun justified an award of punitive damages. *Kimes v. Grosser* (2011) 195 Cal. App. 4th 1556, 1558. Gross negligence consists of “‘the want of even scant care or an extreme departure from the ordinary standard of conduct.’” *Franz v. Medical Quality Assurance* (1982) 31 Cal. 3d 124, 138.

“In an action for the breach of an obligation not arising from contract, where it is proven

by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” Civil Code § 3294(a). “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Id. at § 3294(c)(1). “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” Id. at § 3294(c)(3). In order to adequately plead punitive damages, the complaint must state facts sufficient to support allegations that defendant acted with malice, oppression, or fraud. See *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal. App. 4th 53, 63-64

There is no authority to recover damages for the costs of treatment not incurred. Plaintiff seeks damages for the “cost of proper treatment and care that Chloe did not receive.” Plaintiff did not incur any costs associated with treatment not given, and thus cannot recover monetary damages for that treatment. This prayer for relief should be stricken.

In the instant matter, Plaintiff’s following claims for relief are unsupported by the factual allegations:

Chloe’s special value;

The cost of treatment and care that Chloe did not receive;

Exemplary damages;

Damages for wrongful injuries committed by gross negligence, oppression, fraud or malice.

A pet does not have any special sentimental or emotional value. Moreover, punitive damages in this matter are wholly unsupported for two reasons. First, Defendant Atwater’s conduct, assuming it is true, does not rise to the level of gross negligence. His conduct amounts to nothing more than a misdiagnosis, which is not the want of even scant care or an extreme departure from the ordinary standard of conduct. And second, such conduct is not malicious, oppressive or fraudulent. Plaintiff contends that fraud occurred in the allegation that Defendant Atwater actively concealed his misdiagnosis when VCA provided medical records to Plaintiff. However, assuming this is true, the event occurred after the death of Chloe, so there is no causal link to injury or damage to

property.

Plaintiff's request for relief for the costs that Chloe should have received have no legal support.

Conclusion

Any mention of punitive or exemplary damages, or the special value of Chloe, shall be stricken. Plaintiff will not be granted leave to amend to seek such relief. The court finds no reasonable likelihood that these defects can be cured.

However, while Plaintiff apparently exceeded the scope of the court's 2/3 Ruling in adding the defendants VCA et al., MARS, and DOES, the court will grant her to leave to amend the complaint to add these defendants.

Disposition

Defendant's Motion is granted in part, and denied in part. The particulars are noted in the Conclusion section, above.

Plaintiff is given leave to amend her SAC to add new defendants, but she is not permitted leave to amend the relief she sought in the SAC with respect to punitive or exemplary damages, or any relief related to the special or sentimental value of Chloe, as detailed in the Conclusion section, above.

Defense to file Order.

Plaintiff will have 10 days from the date of this Order to amend.

12. 9:00 AM CASE NUMBER: L25-07941
CASE NAME: WELLS FARGO BANK, NA VS. MARSHA JOY

***HEARING ON MOTION IN RE: MSJ**

FILED BY:

TENTATIVE RULING:

This matter is not on calendar.

13. 9:00 AM CASE NUMBER: L25-08756
CASE NAME: SECURITYPLUS FEDERAL CREDIT UNION VS. LAUREN PORTER

***HEARING ON MOTION IN RE: TO TRANSFER VENUE AND JURISDICTION**

FILED BY:

TENTATIVE RULING:

This matter was continued from 2/3/26, when the court found that Plaintiff had not been properly served with notice of Plaintiff's Motion to Transfer Venue.

In the ruling from 2/3/26, Defendant was ordered to timely serve Plaintiff with notice of 4/14/26 as